

Court No. - 64

Case :- WRIT - C No. - 19713 of 2023

Petitioner :- Manoj Kumar Seth

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rajesh Yadav,Pranav Mishra,Shivam Upadhyay

Counsel for Respondent :- C.S.C,Udit Chandra

Hon'ble Saumitra Dayal Singh,J.

Hon'ble Deepak Verma,J.

1. Heard Sri Rajesh Yadav, learned counsel for the petitioner, Ms. Shivani Agarwal, Advocate holding brief of learned counsel for the distribution company and Ms. Bhavya Tewari, learned Standing Counsel for the State.

2. Petitioner claims entitlement to electricity connection at a tenanted shop being run by him. He claims to have made application in accordance with law and thus he further claims to be entitled to the connection.

3. Upon written instructions, learned counsel for the distribution company would state that besides the outstanding dues of the earlier connection at the same premises, there also exists an unresolved case of electricity theft lodged against the landlord of the premises. Therefore, the distribution company finds itself unable to grant electricity connection as prayed for. Reference has also been made to the provisions of the U.P. Electricity Supply Code 2005, in support of such objection raised.

4. Be that as it may, without entering into the merits of the case, we **dispose of** the writ petition with the direction, the respondent no. 3 may consider the application made by the petitioner and

issue appropriate directions in that regard. If the electricity connection prayed for is to be declined, reason for the same may be communicated to the petitioner within a period of one week from today.

Order Date :- 2.6.2023
SA

(Deepak Verma, J.)

(S. D. Singh, J.)